

25PSCV04360 25PSCV04360

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-03

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Source SHA-256: 75d741674cedbaf43198de795ce8fdb624d8ae2edddf6b90259bd2c9fa1ff2c3

Case Number: 25PSCV04360 Hearing Date: September 3, 2026 Dept: O

Tentative Ruling

DEFENDANT

CITY OF AZUSA'S NOTICE OF MOTION AND MOTION TO SET ASIDE DEFAULT (AND ANY JUDGMENT THEREON) is GRANTED; the summons and complaint and the statement of damages did not get sent to the TPA, either directly or through Nguyen, by the excusable neglect/mistake of Hernandez and Johnson; there is no evidence of the City flagrantly ignoring the summons and complaint. The court requests that the City file a proposed order.

Background

This

case arises from a motor vehicle accident that happened on January 19, 2025. Plaintiff JUAN OMAR AGUILUZ alleges that a vehicle driven by Defendant Martin D. Torres Cisneros, an agent of Defendants Amazon.com, Amazon Logistics, and JDM Deliveries, Inc. unsafely entered an intersection, and that said intersection was a four-way intersection with no stop signs in any direction of travel, and was designed, owned, managed, and operated by Defendants City of Azusa and County of Los Angeles.

On

December 4, 2025, Plaintiff filed suit against Defendants for:

1.

Motor Vehicle Negligence

2.

General Negligence

3.

Dangerous Condition of Property

On

February 3, 2026, JDM filed its answer.

On

April 3, 2026, a CMC/OSC was held; according to the minute order (MO), in part, "Counsel for Plaintiff represents that they are still attempting to serve the Defendant Martin D. Torres Cisneros. Counsel for Defendant JDM Deliveries Inc. represents that they may represent Defendant Torres Cisneros upon service." The MO states that mediation is to be completed by 11/4/26.

On

June 11, 2026, default was entered against the City. (According to the proof of service (POS) filed on 5/15/26, the City was served by leaving the papers with 'Brenda Hernandez-Deputy City Clerk' on 4/13/26.) That same day, default was also entered as to the County. (According to the POS filed as to the County, the County was also served on 4/13/26 by serving 'Yancel Welch—Deputy Clerk.')

On

July 31, 2026, Amazon Logistics filed a notice of association of counsel.

Onn

August 6, 2026, the instant motion was filed.

On

August 20, 2026, an opposition was filed.

On

August 27, 2026, the City filed a reply.

On

August 28, 2026, Plaintiff filed a surreply. That same day, Plaintiff filed a POS indicating that Defendant Cisneros was served via substituted service on 8/21/26 by serving 'Daniela L. Co-Occupant.'

Discussion

The

City moves to set aside the default entered against it on the grounds of mistake, inadvertence or excusable neglect. After a review of the papers and authority, the court, adhering to the liberal policy and exercising its broad discretion in granting such motions,[1] the court GRANTS the motion because the Third Party Administrator ("TPA"), which handles such claims, were not emailed with the summons and complaint and the statement of damages.

As

set forth in the motion and supporting document(s), the relief is necessary due to the particular process involved when public entities are sued. The City was (and is a member of California Joint Powers Insurance Authority ("CJPIA"), a risk-sharing pool of self-insured public entities; CJPIA engages a TPA to handle claims; At the time of the accident, the TPA was Carl Warren & Co; currently, the TPA is a unit of Athens Administrators; when the City was served, Hernandez emailed the summons and complaint to the City Attorney, City Manager, Deputy City Manager, and the Director of Administrative Services; after the statement of damages (seeking \$5 million in damages) was delivered on April 13, 2026, Hernandez emailed it to the same officials, but Hernandez did not send the summons and complaint or the statement of damages to the TPA or to Vu Nguyen, the Risk Management Analyst in the Department of Administrative Services. Hernandez did not so because she did not realize that the incoming papers related to a claim that had been filed, namely the claim from June 9, 2025 because that had been received by a different deputy clerk, Krystal Avila, not Hernandez. On top of that, while Risk Management—which deals with claims—is within the Department of Administrative Services, and the January 28 and April 14 emails had been sent to Talika Johnson, the head of that department (Johnson Decl., ¶ 2), Ms. Johson had not reviewed those emails.

Based

thereon, the City argues that both Hernandez's failure to send the papers to the right individuals and Johnson's failure to read her emails and subsequently forward them to someone to deal with the lawsuit (i.e., in TPA) meets the standard for discretionary relief.

Plaintiff

in opposition, however, vehemently disagrees. The court is unpersuaded by

Plaintiff's arguments.

i.

The City Did Not Ignore the Summons and
Complaint

For

one, Plaintiff argues that “[t]his is not a case in which service papers went astray, were delivered to a stranger, or never reached anyone with authority.” (Opp. p. 5:16-17.) But, to an extent, the papers did go astray since they were not delivered to the right individual(s). But even when papers are delivered to the right person, things go awry which sometimes warrants relief. For example, a calendaring error is enough to set aside a default. (See e.g., *In re Marriage of Nishida & Kamoda* (2026) 120 Cal.App.5th 298; see also *Comunidad en Accion v Los Angeles City Council* (2013) 219 Cal.App.4th 1116, 1134–1135 [calendaring error is generally considered excusable unless it is not isolated mistake]; see also *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 682 [transferring a date from a timeline to a calendar is a clerical type mistake that anyone could have made].) The court makes that illustration because those are situations wherein notice was received, but something went awry and yet default was still permissibly set aside.

ii.

Cruz is Distinguishable[2]

To the extent that

Plaintiff argues internal document-handling failures by an organizational defendant that in fact received the papers are not an excuse and cites to *Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, that case is inapposite. In *Cruz*, there were two issues: whether service of the summons and complaint were effective and whether the defendant established that an extrinsic mistake had prevented it from litigating the action on the merits such that equitable relief was warranted. (Id. at pp. 494-495.) The second issue is the most ‘relevant’ to Plaintiff’s argument. However, Plaintiff appears to latch onto a few sentences regarding internal processes to support his position, but looking at the facts, it becomes clear that the case has no bearing. The facts of *Cruz* are rather lengthy but, in short, in *Cruz*, the minor plaintiff suffered burns when a pressure cooker distributed by defendant Fagor exploded. (Id. at p. 493) After Fagor’s insurance carrier denied liability, the plaintiff filed

and served a summons and complaint in December 2004. (Ibid.) Fagor did nothing until February 2005, when a Fagor employee received the plaintiff's request for entry of default and forwarded it to Fagor's insurance carrier. The court entered default judgment in May 2005, but Fagor did not make any appearance in the case until November 2005, when it moved to set aside the default. (Id. at p. 494.) The appellate court reversed the trial court's ruling and, with respect to equitable relief, the court observed that the trial court's order asserted "in a conclusory manner" that Fagor submitted evidence of a meritorious defense, satisfactory excuse for its failure to present a timely defense, and diligence. (Id. at p. 503.) The court rejected Fagor's claim that it did not know about the lawsuit prior to receiving the entry of default in February 2005, and found that Fagor "has not offered any justification for why it did not take any action or seek to have its insurer take any action in the time between when [a Fagor employee] received notice of the action and the entry of default." (Id. at pp. 504-506.) The court also found that Fagor failed to act diligently when it learned of the request for entry of judgment, waiting until it faced a levy on its accounts receivable. (Id. at p. 508.)

Here,

by contrast, this court expressly finds credible both the declarations.

Hernandez attests that she did not "realize[] that there was a prior claim and thus had not sent the material to Vu Nguyen or the TPA." (¶4). And Johnson credibly declares that since the Risk Management

Analyst was not included as a recipient on the January 28, 2026 and April 14, 2026 emails, she essentially did not think to forward them to the Risk Management Analyst in accordance with the City's normal practice. (Johnson Decl., ¶4.) In short, whereas Cruz seemed to involve outright flagrantly ignored the responsibility to present a defense and wherein the defendant waited nine months after it admitted it was aware that the plaintiff was seeking entry of default before taking any action in this case, here, there no such evidence nor such inferences.[3]

iii.

More Evidence is Not Required

Second,

Plaintiff argues that the City has not offered declaration from the City Attorney, the City

Manager, the Assistant City Manager, or the City Clerk

Services Manager. It is unclear why that is necessary when the individuals stated to have caused the mistake—Hernandez and Johnson—have provided their declarations. Plaintiff cites to *Bonzer v. City of Huntington Park* (1993) 20 Cal.App.4th 1474 to show why the law requires declarations “from every person.” (Opp. p. 12.)^[4] But as even noted in reply, Bonzer held no such thing. The case didn’t stand for the proposition that a certain number of declarations was necessary. Instead, the appellate court looked at the “detailed, credible, and unimpeached evidence” and that the trial abused its discretion in drawing an “inference” that notice of the lawsuit as received. (Id. at p. 1481.)

iv.

Diligence

Finally,

Plaintiff argues that because the City admits it knew of the default on June 15, 2026 and it filed this motion on August 5, 2026, 51 days later, that it was not diligent. Setting aside that a motion need not be filed immediately and that no objective, unreasonable amount of time has passed, the motion explained why: the other counsel discovered a conflict and had to recuse themselves such that the current counsel did not get the matter until July 6 and filed on August 5, within one month.^[5]

Conclusion

Ultimately, a mistake is excusable when a reasonably prudent person under the same or similar circumstances might have made the same error. (*McClain v. Kissler* (2018) 39 Cal.App.5th 399, 414.) Here, many fail to forward correspondence to the right individual(s) and/or read emails due to high volumes. Even assuming there are doubts as to the applicability of excusable neglect/mistake, the law is clear and well-established: Doubts are resolved in favor of the application for relief from default. (*Bonzer*, supra, 20 Cal.App.4th at pp. 1477-1478.) Plaintiff’s request for award of expenses is denied. The motion is granted.

[1] See e.g., *Solv-All v. Superior Court* (2005) 131 Cal.App.4th 1003 [for legal standard].

[2] And as noted in reply, Plaintiff cites *Don v. Cruz* (1982) 131 Cal.App.3d 695, 702 and *Scognamillo*

v. Herrick (2003) 106 Cal.App.4th 1139, 1148-1149 but those about negligence of a TPA or insurance carrier are not in point because there is no such claim here.

[3] (Recently the procedure was changed so that incoming summonses and complaints would also go to Vu Nguyen and the TPA, regardless of connection to aa asserted claim.)

[4] In surreply, Plaintiff maintains that he did not cite the case for such a proposition.

[5] Plus, as argued in reply, Plaintiff himself did not promptly take certain action such as serving a party or serving the statement of damages. Additionally, the City attempted to meet and confer to file a stipulation to set aside the default.